

Bitondo, Mike (DEQ)

From: Bitondo, Mike (DEQ)
Sent: Wednesday, September 25, 2013 4:23 PM
To: 'Barbieri, Charles'
Cc: utilities@Cadillac-MI.net
Subject: RE: Electronic Comments on City of Cadillac, NPDES Permit # MI0020257
Attachments: Cadillac WWTP Draft Permit 9-25-13.pdf

Thank you for your comments however they do not reflect our previous phone conversation. We agreed to reduce the available cyanide monitoring frequency to monthly from weekly. That is a reduction of 40 samples per year. Your letter still refers to weekly. However, we have again reviewed the Available Cyanide limits & monitoring frequency and our position has not changed. The final effluent limitations for available cyanide were developed consistent with Rule 323.1211, of the Part 8 Rules. The final effluent results for available cyanide reported in the DMRs as 0 or <2 ug/l were used in the reasonable potential analysis. In fact, all the final effluent data for available cyanide reported by the Cadillac WWTP in the DMRs were used for the reasonable potential determination. These data indicate there is a reasonable potential for cyanide to be discharged at concentrations exceeding Michigan WQS. The permit allows you to request a monitoring frequency reduction to quarterly after one year. That is only 8 additional samples over the monitoring levels in your current permit.

Also in that conversation the City agreed to present alternative language for the Asset Management condition. Instead, we are simply presented with objections. Your letter was reviewed and discussed by permits section management. The attached permit contains revised Asset Management language with the changes hi-lighted. Among other things, the new language shortens the time for submittal of the program from one year to six months but then allows inclusion of a development/implementation schedule over the life of the permit.

Asset Management language is being included in all major municipal permits as they come up for re-issuance. We are not hearing many objections. The inclusion of Asset Management is supported by the Part 41 Rules. It is a necessary permit requirement for protection of the waters of the state. Permittees who fail to plan adequately for the future run the risk of failed treatment systems, or components thereof, and no funds to pay for necessary repairs. This in turn can result in permit limit violations and the discharge of pollutants at levels that are injurious to the receiving waters.

This requirement only applies to facilities which the city owns and operates. It does not apply to the collection systems owned by contributing municipalities.

The State of Michigan has indeed provided State funds for compliance. The State has made available Storm Water, Asset Management and Wastewater Program grant & loan funds (\$450M total, \$97M in FY14). Up to \$2M in grants is allowed per municipality for Asset Management program development and there are no limits for low interest loans to help finance construction projects identified in asset management plans. We expect applications in excess of available funds so there is no guarantee of grant awards but I encourage the City to apply. Here is a link to additional information: http://www.michigan.gov/deg/0,4561,7-135-3307_3515-11725--00.html#SAW

I have submitted the permit for issuance and expect that it will be issued no later than September 30.

My new phone number starting September 9: 517-284-5594

Mike Bitondo, 517-335-3303, bitondom@michigan.gov
Lakes Michigan and Superior Permits Unit
Water Resources Division-DEQ, PO Box 30458, Lansing, MI 48909-7958

From: Barbieri, Charles [<mailto:CBarbieri@fosterswift.com>]
Sent: Thursday, September 19, 2013 1:15 PM
To: Bitondo, Mike (DEQ)
Cc: utilities@Cadillac-MI.net
Subject: Electronic Comments on City of Cadillac, NPDES Permit # MI0020257

9-19-13

Sir, in accordance with the opportunity to provide comments on the above draft permit, we are enclosing objections and comments on that permit on behalf of the City of Cadillac by electronic submission to you. This is consistent with the procedure described in the public notice and accompanying documents regarding the draft permit. Please be advised that the City of Cadillac is still open to discussing the outstanding issues with you. Review and advise.

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